

May 5, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 11241
(ELEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 3 materials, in DOT Class 105J tank cars with a maximum gross weight on rail greater than 263,000 pounds but not greater than 286,000 pounds. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a) in that the special permit number need not be noted on the shipping papers, 173.31(c)(1) in that the tank car test pressure is not met and 179.13 in that the gross weight on rail is greater than 263,000 pounds.
5. BASIS: This special permit is based on the application of Rohm and Haas Company dated May 7, 2004, submitted in accordance with § 107.105 and the public proceeding thereon and an additional application dated May 4, 2006.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Butyl acrylate, stabilized	3	UN2348	III
n-Butyl methacrylate, stabilized	3	UN2227	III
Ethyl acrylate, stabilized	3	UN1917	II
Isobutyl methacrylate	3	UN2283	III
Methyl methacrylate monomer, stabilized	3	UN1247	II
Styrene monomer, stabilized	3	UN2055	III
Vinyl acetate, stabilized	3	UN1301	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are DOT Specification 105J300W tank cars, authorized under DOT-SP 11184, meeting all DOT specification requirements except that the tank cars are equipped with safety relief valves with a set-to-discharge pressure of 75 psig. Each tank may be loaded to a maximum gross weight on rail not to exceed 286,000 pounds, provided that the tank is not loaded in excess of the amount authorized per § 173.24b.

b. MARKING - Each tank car operating under the terms of this special permit must be marked "DOT-SP 11241" in four inch letters and numerals on a contrasting background above the DOT Specification number.

c. The marking requirements of § 172.203(a) are waived.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each tank car must meet the Association of American Railroads (AAR) Standard S-259 and may be operated only under controlled interchange conditions, as specified in the AAR Interchange Rules, and agreed to by participating railroads.

d. Packagings permanently marked 'DOT-E 11241', prior to October 1, 2007, may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007, must be marked 'DOT-SP 11241'.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Assurance and Compliance
RRS-12, Mail Stop 25
1120 Vermont, S.W.
Washington, D.C. 20590
(202) 493-6248

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

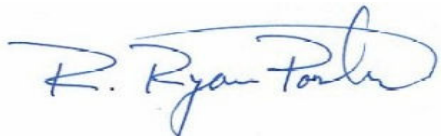
Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

May 5, 2006

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM